Brazoria County District Court

Cause No. 2024-CV-0032

Matthew Gregory, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-16-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof tehreof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's claimed injuries were not proximately caused by the collision at issue. The impact was of low speed and minimal force, and any condition Plaintiff now complains of predates the occurrence or arises from unrelated causes.

Second, Plaintiff failed to mitigate damages. To the extent Plaintiff did not follow reasonable medical advice, delayed treatment, or failed to seek care that a reasonable person would have sought, any recovery must be reduced accordingly.

Third, Plaintiff's own negligence contributed to the occurrence. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and if that percentage exceeds fifty percent, Plaintiff may not recover.